



CHAPTER xli.

An Act to extend the time for the purchase of lands and completion of works authorised by the Hull Barnsley and West Riding Junction Railway and Dock (South Yorkshire Extension Lines) Act 1902 to amend the Acts relating to the Hull Barnsley and West Riding Junction Railway and Dock Company and for other purposes.

A.D. 1905.

[30th June 1905.]

WHEREAS by the Hull Barnsley and West Riding Junction Railway and Dock Act 1880 (in this Act called "the Act of 1880") the Hull Barnsley and West Riding Junction Railway and Dock Company (in this Act called "the Company") were incorporated for the purpose amongst other things of constructing and maintaining certain railways and a dock and other works in the east and west ridings of the county of York and in the city and county of the city (then the town and county of the town) of Kingston-upon-Hull:

And whereas divers other Acts have since been passed conferring further powers on the Company:

And whereas by the Hull Barnsley and West Riding Junction Railway and Dock (South Yorkshire Extension Lines) Act 1902 (in this Act called "the Act of 1902") the Company were authorised to make and maintain certain railways in the west riding of the county of York and to acquire compulsorily the lands necessary for the construction of such railways and also (for the general purposes of their undertaking) the lands in the township or parish of Willerby in the rural district of Sculcoates in the east riding of the county of York described in section 30 of that Act:

A.D. 1905.

— And whereas the periods for the compulsory purchase of such lands and for the completion of the said railways were by the Act of 1902 respectively limited to three years and five years from the passing of that Act which received the Royal Assent on the eighth day of August one thousand nine hundred and two and it is expedient that such periods be extended as in this Act provided :

And whereas under the Act of 1902 provision is made for the prevention of trespass upon the railways of the Company and it is expedient that such provisions be extended to the railways within the dock premises of the Company :

And whereas it is expedient that further provision be made with respect to vessels using the docks and works of the Company as hereinafter contained :

And whereas by section 50 of the Act of 1880 provision was made for the yearly payment by the Company to the Humber Conservancy Commissioners after the opening of the dock by that Act authorised of two hundred pounds and it was enacted that such yearly payment should be permanent and should confer upon the Company the power to appoint under section 18 of the Humber Conservancy Act 1852 one of the members of their board to act as a commissioner in the execution of the Humber Conservancy Acts and it is expedient that that section be amended so as to enable the Company if thought fit to appoint as such commissioner a person who is not a member of their board :

And whereas by the Hull Barnsley and West Riding Junction Railway and Dock (New Works) Act 1882 (in this Act called " the Act of 1882 ") the Company were authorised to raise additional capital to the extent of two million four hundred thousand pounds and in respect thereof to borrow eight hundred thousand pounds in instalments of one hundred thousand pounds in respect of each three hundred thousand pounds of the capital thereby authorised to be raised :

And whereas by the Hull Barnsley and West Riding Junction Railway and Dock Act 1887 (in this Act called " the Act of 1887 ") the additional capital and borrowing powers so conferred by the Act of 1882 were reduced to one million five hundred thousand pounds and five hundred thousand pounds respectively :

And whereas the Company have raised five hundred and fifty thousand pounds preference stock under the powers of the Act of 1882 as amended as aforesaid and it is expedient that they be

authorised to borrow by smaller instalments than those mentioned in the Act of 1882 and that that Act be amended as hereinafter provided : A.D. 1905.

And whereas it is expedient to change the name of the Company :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Hull and Barnsley Railway Act 1905. Short title.

2. The provisions of Part II. (relating to extension of time) of the Railways Clauses Act 1863 and of Part IV. (relating to change of name) of the Companies Clauses Act 1863 are so far as applicable and not expressly varied by this Act incorporated with and form part of this Act. Incorporation of general enactments.

3. The period limited by the Act of 1902 for the compulsory purchase of lands by that Act authorised to be taken compulsorily for the purposes of the railways thereby authorised and of the lands in the township or parish of Willerby in the rural district of Sculcoates in the East Riding of the county of York authorised to be acquired by and described in section 30 of the Act of 1902 is hereby extended for a period of three years from the eighth day of August one thousand nine hundred and five. Extension of time for purchase of lands under Act of 1902.

4. The period limited by the Act of 1902 for the completion of the railways thereby authorised is hereby extended for a period of three years from the eighth day of August one thousand nine hundred and seven. Extending period for completion of railways authorised by Act of 1902.

5. All railways situate within the dock premises of the Company shall be deemed to be railways within the meaning of section 58 of the Act of 1902. Extension of section 58 of Act of 1902 to dock railways.

6. In addition to the byelaws which under the provisions of section 134 of the Act of 1880 they are empowered to make the Company may subject to confirmation by the Board of Trade as Power for Company to make bye-laws as to

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lights on and
regulation of
vessels in
docks &c.

prescribed by section 135 of the said Act from time to time make alter and repeal such byelaws as they think fit for prescribing and regulating the lights to be carried or shown upon ships lighters barges boats and vessels of every description while in the docks and locks of the Company and for regulating the time at which and the manner in which any ship lighter barge boat or vessel shall enter into go out of or lie in or at the docks of the Company or within the prescribed limits as defined by section 137 of the Act of 1880 :

Provided that no byelaw shall be confirmed under this section providing for the carrying of lights by lighters barges keels or other river craft when moored if the Board of Trade on the application of any person interested consider such byelaw not to be necessary for the safe user of the docks and locks of the Company.

Humber con-
servancy com-
missioner ap-
pointed by
Company
need not be a
member of
their Board.

7. Notwithstanding anything contained in section 50 of the Act of 1880 the person whom under that section the Company may appoint to act as a commissioner in the execution of the Humber Conservancy Acts need not be a member of the Company's board.

Amendment
of section 65
of Act of
1882.

8. Notwithstanding anything contained in section 65 of the Act of 1882 of the sum of five hundred thousand pounds which the Company are by that section as amended by the Act of 1887 authorised to borrow the Company may borrow not exceeding in the whole sixteen thousand six hundred and sixty-six pounds in respect of each fifty thousand pounds of the additional capital of one million five hundred thousand pounds which by the Act of 1882 as amended by the Act of 1887 they are authorised to raise but no part of any such sum of sixteen thousand six hundred and sixty-six pounds shall be borrowed until the whole fifty thousand pounds of the said additional capital in respect of which it is to be borrowed is issued and accepted and one half thereof is paid up and the provisions of the said section 65 of the Act of 1882 as to the proofs to be given to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 and the certificate to be given by such justice shall apply to the reduced portions of capital in respect of which the Company may borrow by instalments as above mentioned.

Change of
name of Com-
pany.

9. From and after the passing of this Act the name of the Company instead of being the Hull Barnsley and West Riding Junction Railway and Dock Company shall be the Hull and Barnsley Railway Company.

[5 Edw. 7.] *Hull and Barnsley Railway Act, 1905.* [Ch. xli.]

10. All costs charges and expenses of and incident to the A.D. 1905.
preparing for obtaining and passing of this Act or otherwise in Costs of Act.
relation thereto shall be paid by the Company and the Company
may accordingly apply their funds or any money which they are
authorised to raise for that purpose.

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